

CORPORAL PUNISHMENT PROHIBITED

The Loudoun County School Board, in its operation of Loudoun County Public Schools (LCPS), is committed to fostering a safe, supportive, and nurturing environment for all students; promoting positive behavioral interventions; and maintaining the highest standards of student welfare. As such, LCPS strictly prohibits the use of corporal punishment. This policy reflects LCPS's commitment to treating all students with dignity and respect and to responding to student behavior in a constructive and positive manner.

A. Corporal Punishment Prohibited. No LCPS employee shall subject a student to corporal punishment. For the purposes of this policy "corporal punishment" means the infliction of, or causing the infliction of, physical pain on a student as a means of discipline.

1. Corporal punishment does not include physical pain, injury, or discomfort caused by the actions set forth in Section B below or by participation in practice or competition in an interscholastic sport, or participation in physical education or an extra-curricular activity.

B. Actions Not Considered Corporal Punishment. Corporal punishment does not include, and this policy shall not be deemed to prevent the use of:

1. Incidental, minor, or reasonable physical contact or other actions designed to maintain order and control;

2. Reasonable and necessary force to quell a disturbance or remove a student from the scene of a disturbance which threatens physical injury to persons or damage to property;

3. Reasonable and necessary force to prevent a student from inflicting physical harm on themselves;

4. Reasonable and necessary force for self-defense or the defense of others;

5. Reasonable and necessary force to obtain possession of weapons or other dangerous objects or controlled substances or paraphernalia which are upon the person of the student or within the student's control; or

6. Restraint procedures that are authorized by Policy 5345, Restraint and Seclusion of Students.

C. Determinations Regarding the Use of Corporal Punishment. In determining whether an employee was acting within the exceptions set forth in Section B above, due deference

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shall be given to reasonable judgments at the time of the event which were made by the employee.

[Former Policy 8-30]

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Legal Refs: Code of Virginia 1950 as amended, §§ 22.1-78 and 22.1-279.1

Cross Ref: Policy 5345, Restraint and Seclusion of Students